

		<u>Title claims</u> (4th, 5th, 6th causes of action): The District lacks standing to assert these claims because it fails to allege title to, or a real property interest, in the subject property. [<i>Chao Fu, Inc. v. Chen</i> (2012) 206 Cal.App.4th 48, 59; <i>Deutsche Bank National Trust Co. v. Pyle</i> (2017) 13 Cal.App.5th 513, 523; <i>Truck Ins. Exchange v. Bennett</i> (1997) 53 Cal.App.4th 75, 84, fn. 3.) An option to purchase conveys no interest in land, but only a contractual right in the optionee to buy at the optionee's election. (<i>Wachovia Bank v. Lifetime Indus., Inc.</i> (2006) 145 Cal.App.4th 1039, 1049-1050.) The demurrer is therefore SUSTAINED without leave to amend as these causes of action. <u>Fraud claims</u> (7th and 9th causes of action): The SAC alleges sufficient facts to support each element of the fraudulent concealment claim, including a duty to disclose arising from exclusive knowledge, active concealment and a preexisting relationship. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40 [elements]; <i>LiMandri v. Judkins</i> (1997) 52 Cal.App.4th 326, 336 [duty to disclose]; SAC ¶¶ 23, 24, 115-119, Ex. 5; see also ¶ 7 [the Lenders are the same legal entity].) The SAC also alleges sufficient facts supporting civil conspiracy to fraudulent concealment. (<i>Doctors' Co. v. Superior Court</i> (1989) 49 Cal. 3d 39, 44 [elements]; SAC ¶ 132.) The demurrer is therefore OVERRULED as to these causes of action. <u>Equitable claims</u> (8th and 11th causes of action): The SAC alleges sufficient facts to state a cause of action for unjust enrichment, accounting, constructive trust and injunctive relief. (<i>Peterson v. Celco Partnership</i> (2008) 164 Cal.App.4th 1583, 1593 [elements of unjust enrichment]; <i>Civ. Code</i> § 2224 [constructive trust]; SAC ¶¶ 123-130 [unjust enrichment]; ¶¶ 146-147 [constructive trust].) The demurrer is therefore OVERRULED as to these causes of action. <i>Counsel for Plaintiff shall give notice of this ruling.</i>
10.	American Express National Bank v. Pinon 25-1475752	Plaintiff American Express National Bank's ("Plaintiff") unopposed Motion for Summary Judgment ("Motion") is GRANTED. Plaintiff's sole cause of action against defendant Marcus Pinon ("Defendant") is one for breach of contract. "To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage. [Citation.] If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal. App. 4th 299, 307.) Plaintiff has met its initial burden on the Motion by showing there was a contract between Plaintiff and Defendant which Defendant agreed to repay Plaintiff for any money or charges incurred on the Account. (Pla. Sep. Statement Nos. 1-2, 4, 6, 9-11.) Plaintiff lent the money to Defendant, but Defendant failed to make the required payments. Defendant has been harmed in the sum of \$37,424.33 outstanding on the Account, and an additional \$515 in court fees. The burden transfers to Defendant to show triable issues of material fact remain

		that would require denial of the motion. (<i>Civ. Proc. Code</i> § 437c(c) and § 437c(p)(1). As Defendant failed to oppose the Motion, Defendant failed to meet the transferred burden under the code. The Motion is GRANTED. <i>Plaintiff to give notice.</i>
11.	Carlton v. Ford Motor Company 24-1445099	(Continued)
12.	Tykhonina v. In-N-Out Burgers, Inc. 25-1470899	The motion for summary judgment, or in the alternative, summary adjudication, filed by defendant In-N-Out Burgers (Defendant) directed to the complaint of plaintiff Daria Tykhonina (Plaintiff) is DENIED. On a motion for summary judgment, a defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense thereto. (<i>Code Civ. Proc.</i>, § 437c(p)(2).) A defendant does not satisfy its burden of proof by producing evidence that does not exclude the possibility that plaintiffs may possess or may reasonably obtain evidence sufficient to establish their claim. (<i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442.) "There is no obligation on the opposing party ... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing <i>every element</i> ... necessary to sustain a judgment in his favor." (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468 (emphasis in original; internal quotes omitted).) Defendant failed to address the full scope of duties and breaches alleged in the Complaint. (See <i>Nieto v. Blue Shield of Calif. Life & Health Ins. Co.</i> (2010) 181 Cal.App.4th 60, 74—"the pleadings determine the scope of relevant issues on a summary judgment motion".) Plaintiff alleges Defendant owed a duty to exercise reasonable care "with respect to the preparation, handling, and service of hot beverages so as to prevent them from spilling onto and injuring customers such as Plaintiff." (Compl., ¶ 7.) Plaintiff further alleges Defendant breached their duty of care by failing to properly secure the lid on the hot drink, "and otherwise negligently preparing, handling, and serving the drink[], so as to cause a hot drink to spill and cause catastrophic burns to Plaintiff, a customer." (Compl., ¶ 9.) Plaintiff also alleges the failure to properly secure the lid on the hot drink and the failure to appropriately hand the hot drink to Plaintiff created a foreseeable danger that the hot drink would spill upon handing it to a customer such as Plaintiff. (Compl., ¶ 10.) Defendant's motion focuses primarily on its alleged liability for failing to secure the lid on the hot drink. Defendant, however, failed to adequately